Smt. Rani Devi vs State Of U.P. & Others on 13 July, 2016

Author: Prabhat Chandra Tripathi

Bench: Prabhat Chandra Tripathi

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HIGH COURT OF JUDICATURE AT ALLAHABAD


?Court No. - 23                                (A.F.R.)

Case :- CRIMINAL REVISION No. - 864 of 2012


Revisionist :- Smt. Rani Devi

Opposite Party :- State Of U.P. & Others

Counsel for Revisionist :- Dhirendra Kr. Srivastava

Counsel for Opposite Party :- Govt. Advocate,M.P.Yadav,Rajesh Kushwaha


Hon'ble Prabhat Chandra Tripathi,J.
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List has been revised. Ms. Anamika Srivastava, Advocate holding brief of Sri D.K. Srivastava, learned counsel for the revisionist, learned A.G.A. for the State of U.P. and Sri M.P. Yadav, learned counsel for the opposite parties no.2 and 3 are present.

Heard learned counsel for the parties and perused the record.

This revision has been filed against the order dated 06.03.2012 passed by the learned Additional Sessions Judge, Court No.5, Allahabad in Criminal Appeal No.239 of 2011 (Smt. Rani Devi v. Smt. Sudha Jaiswar and others) as well as order dated 08.09.2011 passed by the learned Judicial Magistrate- I, Room No.1, Allahabad in Complaint Case No.1796 of 2011 (Smt. Sudha and others v. Prabhat Kumar and others).

It has been argued on behalf of the revisionist that the impugned order dated 08.09.2011 passed by the learned Judicial Magistrate- I, Room No.1, Allahabad in Complaint Case No.1796 of 2011 (Smt. Sudha and others v. Prabhat Kumar and others), under Section 23 of the Protection of Women from

Domestic Violence Act, 2005, Police Station Khuldabad, District Allahabad is erroneous in the eye of law because it has been passed as an ex-parte order and the order dated 06.03.2012 passed by the learned Additional Sessions Judge, Court No.5, Allahabad in Criminal Appeal No.239 of 2011 (Smt. Rani Devi v. Smt. Sudha Jaiswar and others), whereby the appeal been dismissed is also beyond the jurisdiction and against the provisions mentioned in Section 13 of the Protection of Women from Domestic Violence Act, 2005 read with Rule 12 of the Protection of Women from Domestic Violence Rules, 2006.

In the impugned order dated 08.09.2011 of the learned Judicial Magistrate- I, Room No.1, Allahabad it is clearly mentioned that the order has been passed as an ex-parte and the same has been affirmed by the court of learned Additional Sessions Judge, Court No.5, Allahabad vide order dated 06.03.2012.

Learned counsel for the revisionist has relied upon the judgement of Uttarakhand High Court in case of S. Vishwanathan v. Smt. Pushpa [2011 (74) ACC 43].

Section 13 of the Protection of Women from Domestic Violence Act, 2005 is a mandatory section which cannot be over-sighted. Learned Magistrate has not complied with Rule 12 of the Protection of Women from Domestic Violence Rules, 2006 where it was required by him to clearly mention about the service of notice. Resultantly, the impugned order dated 08.09.2011 passed by the learned Judicial Magistrate-I, Room No.1, Allahabad and the order dated 06.03.2012 of the Additional Sessions Judge, Court No.5, Allahabad are liable to be set aside.

For the reasons discussed above, this revision is summarily allowed. The impugned order dated 08.09.2011 passed by the learned Judicial Magistrate-I, Room No.1, Allahabad and the order dated 06.03.2012 of the Additional Sessions Judge, Court No.5, Allahabad are hereby set aside.

Revisionist, Smt. Rani Devi is directed to appear before the trial court on 27th July, 2016. Learned trial court is directed to pass a fresh order after hearing the parties. In case she fails to appear before the trial court personally or through the counsel on the date fixed i.e. 27th July, 2016 or on the date fixed thereafter by the said court, the trial court is at liberty to pass appropriate order after hearing the opposite parties no.2 and 3.

Order Date :- 13.7.2016 S.Sharma